

No. 26-_____

**IN THE UNITED STATES COURT OF APPEALS
FOR THE FIFTH CIRCUIT**

IN RE CORY J. BENNETT,
Petitioner.

On Emergency Petition for a Writ of Mandamus to the
United States District Court for the Western District of Texas,
Austin Division, No. 1:26-cv-01601-RP-DH

**EMERGENCY MOTION FOR EXPEDITED CONSIDERATION
OF PETITION FOR WRIT OF MANDAMUS**

Petitioner Cory J. Bennett, proceeding pro se, moves under Fifth Circuit Rule 27.3 for emergency consideration of his Petition for Writ of Mandamus. Petitioner asks this Court to decide the petition as soon as practicable to enable the district court to adjudicate the pending IFP application and § 1915 review while UT Austin's Fall 2026 registration and add period remains open.

Certificate of Interested Persons

The undersigned certifies, pursuant to Fifth Circuit Rules 27.4 and 28.2.1, that the persons and entities interested in the outcome of this case are those identified in the Certificate of Interested Persons in the accompanying petition. No publicly traded corporation is a party, and no publicly traded corporation has a financial interest in the outcome.

Nature of the Emergency

Petitioner asks this Court to decide the mandamus petition before unresolved threshold IFP screening extinguishes the remaining operational window for effective Fall 2026 relief under the preliminary-injunction procedure authorized on July 7.

Petitioner filed the underlying civil-rights action on June 12, 2026. The clerk docketed his IFP application as Dkt. 3 on June 23. The district court has not decided that application, completed review under 28 U.S.C. § 1915(e)(2), or issued process. No Defendant has been served.

On July 2, the district court denied Petitioner's preliminary-injunction motion for lack of notice. On July 7, the court denied reconsideration, entering a text order stating that Petitioner may refile the preliminary-injunction motion once notice is given to opposing parties. Petitioner pursued court-issued process and Rule 4 service by filing Dkts. 10, 11, and 12. Those filings were referred to the magistrate judge, who has entered no order, report, or recommendation. On August 14, Petitioner filed Dkt. 13 asking the district judge to modify the referrals and expedite disposition. The electronic filing system automatically routed Dkt. 13 back to the same magistrate judge.

Under UT Austin's published calendar, registration for readmitted students begins August 20, classes start August 24, late registration ends August 31, and permission-based adds close September 9. Without an IFP determination or § 1915 screening, court-directed service under § 1915(d) remains unavailable. Meanwhile, continued judicial inaction consumes the remaining period required for Rule 65

notice, renewed briefing, judicial decision, and university administrative execution.

Irreparable Harm

If this petition is handled on an ordinary original-proceeding calendar, the remaining Fall 2026 window risks closing before ordinary processing produces a ruling. An appeal after final judgment cannot remediate an academic semester that has already passed. The July 7 text order conditions preliminary relief on adverse notice, but withholding threshold IFP screening stalls the statutory service mechanism guaranteed to indigent litigants under 28 U.S.C. § 1915(d) and Rule 4(c)(3).

The requested writ seeks solely to compel threshold adjudication of the pending IFP application and § 1915 screening, leaving all substantive determinations entirely to the district court. Withholding those threshold rulings stalls the court-directed service mechanism, consuming the operational period required for Rule 65 notice, renewed briefing, and administrative implementation before Fall 2026 deadlines expire.

Date by Which Action Is Necessary

Petitioner requests a decision as soon as practicable. No single University date marks a point at which appellate action alone can preserve the requested relief, because any writ would be followed by district-court disposition of the IFP application and § 1915 review and, depending on those rulings, further proceedings concerning process, Rule 65 notice, renewed briefing, decision, and University implementation.

August 20, 2026—when registration for readmitted students begins—is the first date on which the remaining Fall 2026 window materially contracts. Classes begin August 24, ordinary undergraduate late registration ends August 31, and permission-based registration continues only through September 9. With readmission registration beginning tomorrow and classes starting in five days, each additional day reduces the time available for district-court proceedings and administrative execution. Petitioner respectfully requests expedited disposition sufficient to preserve as much of that remaining period as practicable.

If the Court directs an answer, Petitioner asks that the answer period be measured in days.

Certification

I certify that the facts supporting emergency consideration of this motion are true and complete pursuant to Fifth Circuit Rule 27.3.

The required district-court papers are attached to the petition. No opposing district-court memorandum exists, and the district court has issued no order explaining the delay.

Relief Requested

Petitioner respectfully requests that the Court:

1. treat the petition as an emergency original proceeding under Fifth Circuit Rule 27.3;
2. decide the petition as soon as practicable;

3. if an answer is required, set an answer deadline measured in days so as to preserve as much as practicable of the remaining Fall 2026 registration and add period; and
4. grant any other procedural relief necessary to prevent the requested time-sensitive relief from becoming ineffective through the passage of the remaining academic deadlines.

Respectfully submitted,

Dated: August 19, 2026

s/ Cory J. Bennett

Cory J. Bennett, Petitioner Pro Se

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Certificate of Conference

No Defendant has been served with process or appeared, and no opposing counsel is of record. Petitioner has therefore been unable to obtain any respondent's position on this motion or confer with counsel. As of filing, Petitioner does not know whether any respondent will oppose it. Pursuant to Federal Rule of Appellate Procedure 21(a)(1), copies of this motion and the petition are being served directly on the trial-court judges.

s/ Cory J. Bennett
Cory J. Bennett, Petitioner Pro Se

Statement Regarding Filing and Rule 21 Service

I certify that on August 19, 2026, I filed this Emergency Motion with the Petition for Writ of Mandamus with the Clerk of the United States Court of Appeals for the Fifth Circuit. Because no Defendant has been served with process or entered an appearance in the district-court action, and no opposing counsel is of record, service cannot be effected on adverse parties below. Pursuant to Federal Rule of Appellate Procedure 21(a)(1), copies of this motion and all accompanying filings have been served directly on the trial-court judges.

s/ Cory J. Bennett
Cory J. Bennett, Petitioner Pro Se

Certificate of Compliance

This motion complies with the length limits of Federal Rule of Appellate Procedure 27(d)(2) and with the typeface requirements of Rules 32(a)(5) and 32(a)(6), as made applicable by Rule 32(c)(2), because it has been prepared in a proportionally spaced typeface using L^AT_EX in 14-point Times and contains 726 words. A motion produced using a computer may not exceed 5,200 words.

s/ Cory J. Bennett
Cory J. Bennett, Petitioner Pro Se